

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROLANDO NOGUERA,

Plaintiff,

SUMMONS

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, P.O. RAYMOND AQUINO, Tax Id. No. 948301, Individually and in his Official Capacity, SGT. ALEKSANDER KOVALENKO, Tax Id. No. 944709, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown).

Plaintiff designates Bronx County as the place of trial.

The basis of venue is:
CPLR § 504(3)

Defendants.

-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
June 28, 2019

COHEN & FITCH LLP
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. RAYMOND AQUINO, Tax Id. No. 948301
47th Precinct
4111 Laconia Ave.
Bronx, NY 10466

SGT. ALEKSANDER KOVALENKO, Tax Id. No. 944709
Narcotics Borough Bronx
c/o 1 Police Plaza, Room 110C
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROLANDO NOGUERA,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. RAYMOND AQUINO, Tax Id. No. 948301, Individually and in his Official Capacity, SGT. ALEKSANDER KOVALENKO, Tax Id. No. 944709, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown).

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff ROLANDO NOGUERA, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff ROLANDO NOGUERA is a Hispanic male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. RAYMOND AQUINO, Tax Id. No. 948301, SGT. ALEKSANDER KOVALENKO, Tax Id. No. 944709, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about March 29, 2017, at approximately 7:29 p.m., in the County of Bronx, City, and State of New York, plaintiff ROLANDO NOGUERA was lawfully present in the vicinity of Bronxwood Ave. and E. 221st St.

9. At the aforementioned time and place, plaintiff was lawfully driving, when he became aware that he was being pulled over by NYPD officers – namely, upon information and belief, defendants AQUINO and/or “JOHN DOE” #1-10.

10. Upon becoming aware that he was being stopped by the aforementioned officers, plaintiff immediately pulled over his vehicle.

11. Subsequently, defendants AQUINO and/or “JOHN DOE” #1-10 approached plaintiff’s vehicle on the driver side, and defendant AQUINO requested that plaintiff provide his license and registration. In response, plaintiff requested to know why he was being stopped, but did not refuse to provide the requested documentation.

12. Thereafter, plaintiff respectfully requested to speak to a supervising officer. In response, defendants AQUINO and/or “JOHN DOE” #1-10 advised plaintiff that they would have a supervisor come to the scene.

13. Several minutes later, multiple other officers arrived on the scene, including, but not limited to, defendant KOVALENKO. At this time, plaintiff began to speak with defendant KOVALENKO and again requested to know why he had been stopped.

14. In response, defendant KOVALENKO ordered plaintiff to exit the vehicle. Plaintiff complied, exited the vehicle, and handed defendant KOVALENKO his license and registration.

15. Subsequently, defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back.

16. In addition, defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 searched plaintiff’s person and effects.

17. At no time on March 29, 2017, did defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff’s person or effects nor did they obtain voluntary consent from him to do so.

18. At no time on March 29, 2017, did defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s person or effects.

19. At no time on March 29, 2017, did defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

20. At no time on March 29, 2017, did defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

21. At no time on March 29, 2017, did plaintiff obstruct governmental administration, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way.

22. Thereafter, plaintiff was transported to a nearby police precinct where he was searched, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with a crime by defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10. Specifically, plaintiff was charged with Obstructing Governmental Administration.

23. After being detained at the aforementioned precinct, plaintiff was transported to Central Booking where he was searched again, subjected to a retina scan, and further detained in holding cells.

24. In connection with plaintiffs’ arrest, defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney’s Office. Thereafter, defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiffs’ arrests. Specifically, defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 falsely stated, *inter alia*, that plaintiff refused to provide them with any identification and thus prevented them from performing their official duties as police officers.

25. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody and made approximately one (1) court appearances each before all charges against him were adjourned in contemplation of dismissal on or about March 20, 2017.

26. In addition, as a result of the foregoing, plaintiff suffered bruises to his wrists and shoulder pain as a result of being tightly handcuffed and missed approximately one (1) day of work, causing him to lose wages.

27. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, lost wages, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

29. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

30. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs,

usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. As a result of the aforesaid conduct by defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10, plaintiff was subjected to illegal, improper and false arrest by the defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

36. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF A FAIR TRIAL UNDER 42 U.S.C. § 1983**

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. Defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 created false evidence against plaintiff.

39. Defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office.

40. Defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

41. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

42. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
FAILURE INTERVENE UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

44. Defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 had an affirmative duty to intercede when plaintiff's constitutional rights were being violated in their presence.

45. Specifically, defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 had an affirmative duty to take reasonable measures to prevent plaintiff's arrest in the absence of probable cause.

46. Defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 had an affirmative duty to take reasonable measures to prevent defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 from knowingly making false statements and submitting false paperwork to the District Attorney in connection with plaintiff's prosecution.

47. Defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 had an affirmative duty to take reasonable measures to remedy and/or inform the District Attorney of any such false information or material omissions as soon as they became aware in order to prevent the further and continued violation of plaintiff's constitutional rights.

48. Defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

49. As a result of defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 failure to intercede when plaintiff's constitutional rights were being violated in their presence, plaintiff has suffered damages including, loss of liberty, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

FIFTH CLAIM FOR RELIEF
FIRST AMENDMENT VIOLATION UNDER 42 U.S.C. § 1983

50. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

51. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, defendants AQUINO, KOVALENKO and/or "JOHN DOE" #1-10 are liable for violation of 42

U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

52. Defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 violated plaintiff’s First Amendment rights to speech by unlawfully denying him the right to speak freely by subjecting him to false arrest to deter the exercise of his First Amendment rights.

53. Defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10 's actions were taken in retaliation for plaintiff exercising his First Amendment rights.

54. As a consequence of defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10’s actions, plaintiff suffered violations of his First and Fourteenth Amendment rights to free speech.

55. As a direct and proximate result of the defendants AQUINO, KOVALENKO and/or “JOHN DOE” #1-10’s unlawful actions, plaintiff has suffered damages including, loss of liberty, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

SIXTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

58. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- c. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- d. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of retaliating against them for exercising their First Amendment rights; and,
- e. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- f. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

59. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

62. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

63. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

64. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
June 28, 2019

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff ROLANDO NOGUERA in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not currently residing within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
June 28, 2019

_____/S_____
Ilyssa S. Fuchs